



DECISION

Complaint No.:

POS/180/25/KW/R-3

Name and address
of the complainant :

Mst. Safia Parveen, House No. 10/12, Sector-A, Qasba Colony,
Karachi

Name of the Agency
Complained against :

1. Sub-Registrar, Orangi Town, District West, Karachi
2. Sindh Building Control Authority (SBCA), District West

Name & Designation of
Investigating Officer :

Mr. Masood Ishrat, Registrar

Subject :-

COMPLAINT REGARDING WITHHOLDING OF REGISTRATION OF
PLOT NO.A-10/12, SECTOR-A, QASBA COLONY, ORANGI TOWN,
KARACHI AND ALLEGED SELECTIVE ACTION BY SBCA

THE COMPLAINT

Mst. Safia Parveen filed a complaint dated 09.09.2025 stating that she had entered into a mutual sale transaction, through formal Sale Agreement dated 02.10.2023, with Mr. Naseer Ahmed, whereby she sold her house bearing No. A-23/02, Sector-A, measuring 126 square yards, to Mr. Naseer Ahmed, while Mr. Naseer Ahmed sold his house bearing No.A-10/12, Sector-A, measuring 126 square yards, to her. She added that the said house was initially a grey structure, which she completed over a period of approximately 22 months. She alleged that Mr. Naseer Ahmed instead of transferring the property in her name and handing over the remaining property documents, attempted to transfer the property in favour of a third party through mutation and started harassment by unilaterally cancelling the agreement and pressurizing for possession of part of the property. She added that she approached the Sub-Registrar, Orangi Town, requesting him for not to transfer the property in favour of any third party, as original documents were in her possession but there was no response. Hence she approached this office to intervene.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991. Initially the matter was dealt with by Regional Office, Keamari West but later on it was transferred to Head Office. The matter was referred to the Sub-Registrar, Orangi Town, vide letter dated 12.09.2025 with the direction to withhold registration of Plot No. A-10/12 till final disposal of the matter. In response, the Sub-Registrar vide letter dated 19.09.2025 informed that the matter pertained to a private agreement between the parties; however, the property was placed on the "Ban List" until further orders.

3. The complainant filed a rejoinder dated 19.09.2025 alleging that officials of SBCA selectively inspected her property despite widespread unauthorized constructions in the area.

4. The matter was referred to SBCA for comments. The Deputy Director SBCA, District West, vide letter dated 07.10.2025, reported that action was taken on a complaint dated 15.09.2025 regarding illegal construction and a three-day notice was issued under Section 7-A of the Sindh Building Control Ordinance, 1979.

5. During proceedings, Mr. Muhammad Azam Khan, Advocate, submitted an application dated 07.02.2026 on behalf of Mr. Naseer Ahmed, raising certain grievances regarding alleged misuse of his client's name. The application was taken on record and Mr. Naseer Ahmed was treated as an intervener.

6. The matter was heard by the Investigating Officer on 30.03.2026 and on 28.04.2026. The Sub-Registrar appeared and assured compliance of orders, if and when issued. The intervener appeared and was heard. The complainant did not attend and conveyed through WhatsApp that she does not want to pursue the complaint as she had approached a competent court of law and requested to dispose of her complaint.

FINDINGS

7. It is observed that the matter arises out of a private property transaction between the complainant and the intervener involving disputed civil rights, which falls within the jurisdiction of a court of competent jurisdiction. The complainant has voluntarily withdrawn from these proceedings and opted to seek remedy through the court. The intervener has been afforded an opportunity of hearing. The Sub-Registrar has already placed the property on the Ban List during pendency of the matter.

DECISION

8. In view of the above, the complaint is disposed of as withdrawn as per request of the complainant and case is consigned to record without any order. However, both the parties are at liberty to safe-guard their interest through Court of competent jurisdiction.

Given under my hand and seal of the office



Sd/-

(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman, Sindh
Karachi, the 06th May, 2026